

Art. 12(6) RPBA 2020, its first and second sentences reflect established case law on Art. 12(4) RPBA 2007. (on this case law, see also chapter V.A.5.11 "Article 12(4) RPBA 2007" below).

T 101/17, citing T 162/09 and T 1848/12 (see chapter V.A.5.11.1), underlined with regard to Art. 12(4) RPBA 2007 and Art. 12(6), second sentence, RPBA 2020 that they expressed and codified the principle that each party should submit all facts, evidence, arguments and requests that appear relevant as early as possible so as to ensure a fair, speedy and efficient procedure. An appellant was not at liberty to bring about the shifting of its case to the appeal proceedings as it pleased, and so compel the board either to give a first ruling on the critical issues or to remit the case to the opposition division. Conceding such freedom to an appellant would run counter to orderly and efficient opposition-appeal proceedings. In effect, it would allow a kind of "forum shopping" which would jeopardise the proper distribution of functions between the departments of first instance and the boards of appeal and would be unacceptable for procedural economy generally.

The requirements of the first level of the convergent approach – i.e. those set out in Art. 12(4) to (6) RPBA 2020 – apply **throughout the appeal proceedings**, i.e. also at the stages of the appeal proceedings which are governed by Art. 13(1) and (2) RPBA 2020 (see chapter V.A.4.1.2).

4.3.2 Transitional provisions

a) Applicability of Article 12(4) to (6) RPBA 2020

In J 12/18 the statement of grounds of appeal had been filed before 1 January 2020 but new submissions (concerning the protection of legitimate expectation) were filed during the oral proceedings which took place after this date. The Legal Board held that Art. 12(4) to (6) RPBA 2020 applied in accordance with Art. 25(1) RPBA 2020 because the exception in Art. 25(2) RPBA 2020 only covered submissions in the statement of grounds of appeal, but not **subsequent submissions** in the appeal proceedings. Moreover, Art. 13(1) RPBA 2020, which referred to Art. 12(4) to (6) RPBA 2020, applied in accordance with Art. 25(1) RPBA 2020 (see also the parallel decisions J 13/18, J 14/18; in the parallel case J 3/20, Art. 12(4) to (6) RPBA 2020 applied according to Art. 25(1) and (2) RPBA 2020).

b) Applicability of Article 12(3) RPBA 2020

In T 1533/15 the board underlined that the requirement that the statement of grounds of appeal and the reply thereto should contain the party's complete case was in Art. 12(2) RPBA 2007 and in Art. 12(3) RPBA 2020 and was expressed by substantially identical wording. The board noted with regard to the applicability of Art. 12(3) RPBA 2020 that, according to Art. 25(1) RPBA 2020, the RPBA 2020 applied to any appeal pending on the date of their entry into force, subject to certain exceptions dealt with in Art. 25(2) and (3). Art. 12(3) RPBA 2020 was not among those exceptions. Hence, Art. 12(3) RPBA 2020 applied.

4.3.3 Amendment within the meaning of Article 12(4) RPBA 2020

It is at a board's discretion whether to admit an amendment within the meaning of Art. 12(4) RPBA 2020. On the definition of "amendment" in this context, see chapter V.A.4.2.1 "First level of the convergent approach: amendments to a party's case within the meaning of Article 12(4) RPBA 2020".

4.3.4 Discretion under Article 12(4) RPBA 2020

Pursuant to the non-exhaustive list of criteria in Art. 12(4), fifth sentence, RPBA 2020, the boards are to exercise their discretion in view of, inter alia, the complexity of the amendment, the suitability of the amendment to address the issues which led to the decision under appeal, and the need for procedural economy. The following decisions are reported under the heading of one of these criteria but their assessment was often based on an overall consideration of several factors.

a) Requirement that amendment be identified and reasoned and that timing of its filing be reasoned – Article 12(4), third and fourth sentences, RPBA 2020

(i) No reasons for not submitting the amendment until appeal – not admitted

In T 28/20 the appellant did not explain why a new inventive-step objection (based on a different closest prior art) was first raised on appeal. The board, considering that the requirements of Art. 12(4) RPBA 2020 were not fulfilled, made use of its discretion pursuant to Art. 12(4) RPBA 2020 not to admit this new objection into the proceedings.

(ii) Reasons provided as to why objections raised are overcome

In T 32/16 the board applied the requirement of Art. 12(4), fourth sentence, RPBA 2020 to the respondent's response to the board's preliminary opinion. In its response, which contained amended claim requests, the respondent had also stated from where the amendment was taken. The board noted that the introduced terminology was an explicit recitation of the language used in the application as filed. Demonstration of how these amendments overcame the objection in this particular case, where the lacking features as such had at least already been identified by the appellant, was thus self-evident in the amendments made.

b) Complexity of amendment

(i) New submissions not admitted

In J 3/20 the appellant (applicant) presented a completely fresh case concerning R. 139 EPC with the statement of grounds of appeal. The Legal Board considered that these submissions would imply complex legal and factual issues which were not addressed in the decision under appeal and would thus contradict procedural economy. The Legal Board therefore used its discretion not to admit these submissions into the appeal proceedings.

(ii) New submissions admitted

In T 3272/19 of 11 February 2021, D14, filed with the statement of grounds of appeal, consisted of a single table comprising a list of molecular weights which corresponded to a feature specified in operative claim 1. The board observed that D14 was not only **easy to understand** but also related to a feature which was essential for the outcome of the decision under appeal. It also noted that the appellant's (opponent's) arguments based on D14 were in support of the **same line of attack** as the one used during the opposition proceedings. The board underlined that, although D14 could have been filed earlier (since the feature the list related to was already present in claim 1 as granted), it had been filed at the first opportunity in reaction to the decision under appeal. In view of these circumstances, D14 was admitted pursuant to Art. 12(4) RPBA 2020.

For a further example where the amendment did not lead to any complex subject-matter, see e.g. T 1655/20 (ex parte).

c) Suitability to address issues leading to decision under appeal

In T 1655/20 the first auxiliary request, which was filed for the first time with the statement of the grounds of appeal, was an amendment to the party's case which could be admitted only at the discretion of the board (Art. 12(2) and (4) RPBA 2020). The board considered that the amendment (deletion of "particularly", thereby rendering a feature mandatory) resulted in a further limitation of the claim in a **genuine attempt** by the appellant (applicant) **to respond to the objection** of lack of novelty raised by the examining division in the decision under appeal. Furthermore, this amendment did not lead to any complex subject-matter and did not appear to introduce further issues which would negatively impact on procedural economy. In view of these reasons the board admitted the first auxiliary request into the appeal proceedings.

d) Additional issues raised – procedural economy

In T 1421/20 (ex parte) auxiliary requests 0a, 0b, 0c, which were filed with the statement of grounds of appeal, had not been part of the proceedings before the examining division. The board considered them to be amendments to the appellant's (applicant's) case, which could be admitted into the proceedings at the board's discretion (Art. 12(2) and (4) RPBA 2020). The appellant explained that the amendments carried out in these requests were in response to the objection of lack of clarity in the impugned decision, the feature considered to be unclear having been deleted from the claim. The board, however, considered that the auxiliary requests contained a different **unclear feature** which had been **objected to already** by the examining division. Hence, the board came to the conclusion that, although the amendments carried out in these auxiliary requests might address the objections raised by the examining division in the decision under appeal, they introduced new issues of clarity that led to new objections. These requests were not admitted into the proceedings.

e) Convergence criterion

In T 528/19 did not share this view for Art. 12(4) RPBA 2020. In this case, the patent proprietor had withdrawn part of the requests filed with the reply to the statement of grounds of appeal and at the same time resubmitted the remaining requests in the same sequential order without altering the content. The board explained that any lack of convergence was therefore the same as in the requests initially presented. Any lack of convergence was thus of no relevance for the requests at issue, as convergence was a criterion for use when considering procedural economy for the purposes of Art. 13 RPBA 2020. See, however, also T 1456/20.

f) No objection raised by opposing party

In T 3272/19 of 11. February 2021, D9a and D13 had already been filed during the opposition proceedings, in reply to the preliminary opinion of the opposition division, but had not been decided upon in the contested decision. They were filed again by the respondent (proprietor) with its response to the statement of grounds of appeal. The appellant (opponent) explicitly indicated that they had no objection to the admittance of these documents into the proceedings. The board further took into account that D9a was relied upon by both parties, in particular during the oral proceedings. The board found it appropriate to exercise its discretion pursuant to Art. 12(4) RPBA 2020 by admitting D9a and D13 into the proceedings.

4.3.5 Incomplete case in grounds of appeal or reply – Article 12(3) RPBA 2020 in conjunction with Article 12(5) RPBA 2020

a) Principles

In accordance with the principles underlying the RPBA, the statement of grounds of appeal and any reply to it must contain the party's complete case (Art. 12(3) RPBA 2020, essentially the same as Art. 12(2) RPBA 2007). The purpose of this provision – in both its revised and former versions – is to ensure **fair proceedings** for all parties and to enable the board to start working on the case **on the basis of each party's complete submissions** (T 2610/16, referring to Case Law of the Boards of Appeal, 9th ed. 2019, V.A.4.12.5; see also T 1904/16, T 113/18 and T 319/18).

In T 1439/16 the board pointed out that it was the appellant who defined the extent of the appeal and that, according to Art. 12(3) RPBA 2020, the statement of grounds of appeal had to contain a party's complete case. It had been the choice of the appellant in the case in hand to make an objection of added subject-matter only to claim 1 and not to claim 8 in the statement setting out the grounds of appeal.

Likewise in T 1533/15, concerning a case where the appellant (patentee) filed, at a late stage of the appeal proceedings, auxiliary requests not containing a certain claim which had been objected to in the notice of opposition and by the opposition division, the board emphasised that it would have been for the appellant to present its complete case in the

statement of grounds of appeal – including auxiliary requests not containing the claim at issue (Art. 12(3) RPBA 2020).

Under new Art. 12(5) RPBA 2020, a board has discretion not to admit any part of a submission on appeal which does not meet the requirements in Art. 12(3) RPBA 2020. In T 1421/20 und T 2457/16, for instance, the boards exercised this discretion under Art. 12(5) RPBA 2020 not to admit submissions that were not complete within the meaning of Art. 12(3) RPBA 2020. Fleshing out an incomplete case at a later stage can amount to an amendment within the meaning of Art. 13 RPBA 2020 (as in e.g. J 3/20, T 2227/15, T 326/16, T 1439/16, T 2796/17); see also V.A.4.2.2k) "Fleshing out objections not adequately substantiated in the grounds of appeal or reply"). In some decisions, the boards also took the view that submissions could and should have already been filed at first instance and refused to admit them under Art. 12(6), second sentence, RPBA 2020 (see e.g. J 3/20) or Art. 12(4) RPBA 2007 (see e.g. T 925/16). Some decisions cited Art. 12(3) RPBA 2020 alone as the basis for refusing to admit submissions (see e.g. T 565/16).

b) Incomplete appeal case – Article 12(3) RPBA 2020

(i) Requests not substantiated

In T 2457/16 the board held that the patent proprietor's conduct was not in keeping with the requirement in Art. 12(3) RPBA 2020 that the grounds of appeal contain the party's complete case, because it had not only **not explained what amendments** had been made in its auxiliary requests or **their purpose** but had also made **sweeping reference** to requests filed at first instance that were supposed to still apply on an auxiliary basis, without giving any further details and thus leaving it unclear which requests were to be examined in what order. See also T 1756/16.

In T 2115/17 the board held that merely identifying an amendment (without indicating its basis in the application as filed) was not enough to enable it and the appellant (opponent) to understand the rationale behind the request concerned. On the contrary, it put the onus on the board and the appellant to piece together or deduce the case being made themselves and come up with suitable responses, which was at odds with the requirements of Art. 12(3) RPBA 2020 (see T 687/15, dealing with Art. 12(2) RPBA 2007).

(ii) Claims not presented in full

In T 1421/20 requests 1a to 5a were introduced and commented on in the statement of the grounds of appeal but no claims were filed at that stage. Hence they did not fulfil the requirements of Art. 12(3) RPBA 2020 and the board had discretion not to admit them into the proceedings for this reason only (Art. 12(5) RPBA 2020). Since the requests were not part of the decision under appeal, they were further considered to be amendments (Art. 12(2) and (4) RPBA 2020).